

25STCV17936 25STCV17936

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 25STCV17936 Hearing Date: July 28, 2026 Dept: 414

25STCV17936 Randhawa

et al., v. Volkswagen Group of America, Inc

Thursday,

July 23, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION FOR ATTORNEYS' FEES (7435)

I. BACKGROUND

The

complaint alleges that Defendant breached an express warranty issued in connection with Plaintiff's purchase of a 2024 Audi Q7. On November 12, 2025, Plaintiff filed a notice of settlement. Plaintiff now moves for attorney's fees of \$23,728.13 with consists of \$15,782.50 in attorneys' fees, a multiplier of 1.25 (\$3,945.63), and \$4,000 to review Defendant's opposition, draft a reply and attend the hearing.

Volkswagen

Group of America, Inc., Defendant, argues that Plaintiffs accepted a Cal. Code Civ. Procedure §998 offer of settlement which provided that Plaintiff had 60 days after payment to file a noticed fee motion, in this case by May 9, 2026, which is a Saturday making the last day to file the motion Monday, May 11, 2026. Plaintiffs untimely filed this motion on May 12, 2026. Pursuant to the agreement, Defendant would pay \$5,000 as full satisfaction of attorney's fees and costs if Plaintiff did not file timely. Defendant also argues that the request is excessive and should be reduced to an amount not to exceed \$8,500.

Plaintiffs

did not file a reply brief as of July 27, 2026.

II. LEGAL STANDARDS

A

party prevailing on a Song-Beverly claim shall be allowed to recover fees, costs, and expenses as part of the judgment. (Civ. Code, § 1794 (d).) The court applies the lodestar method to determine a reasonable fee award, which requires a calculation of the number of hours reasonably spent multiplied by a reasonable hourly rate. The latter is based on the prevailing community rate for similar work. (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140.)

Defendant

does not dispute that Plaintiff is the prevailing party.

III. DISCUSSION

The offer that

Plaintiffs signed and accepted reflects that Plaintiffs had no later than 60 days after all payments have been made to file a noticed motion or at Plaintiffs' option if Plaintiffs do not file a noticed motion within 60 days, Defendants will pay Plaintiffs \$5,000 for fees and litigation costs. (Roberson Decl., Ex A, p. 5, ¶ 3.)

Defendant paid

settlement funds on March 10, 2026. (Roberson decl., ¶ 5, Ex. B.) Sixty days thereafter was May 9, 2026. Plaintiff filed this motion on May 12, 2026. Therefore, Plaintiffs are entitled to no more than \$5,000 in fees and costs.

III. CONCLUSION

Based on the

foregoing, Plaintiffs' motion is DENIED